BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

FILED
SEP 03 2026
CLERK, U.S. DISTRICT COURT
NORTH DISTRICT OF CALIFORNIA
SAN JOSE OFFICE

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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **SANTIAGO MEZA-GONZALEZ (CHP #023295); JOSE MELANO (CHP #023054); and DOES 1-10,** Defendants.	**Case No. 4:26-cv-08271-ASK** **DECLARATION OF BRENDAN NGWA NFORBI ISO ADMINISTRATIVE MOTION** Civil L.R. 7-11; Fed. R. Civ. P. 4(e)(1), 4(m); Cal. Code Civ. Proc. § 413.30 Judge: Hon. Ajay S. Krishnan Related: 4:26-cv-05953-ASK

I, BRENDAN NGWA NFORBI, declare as follows:

1. I am the Plaintiff in this action. I am over eighteen years of age. I make this declaration from my personal knowledge in support of Plaintiff's Administrative Motion for an Order Directing Deputy Attorney General Haiyang A. Li to Accept Service of Process on Behalf of Defendant Santiago Meza-Gonzalez. If called, I could and would testify competently to these facts.

2. This action arises from a November 1, 2024 encounter with California Highway Patrol Officers Santiago Meza-Gonzalez, badge 023295, and Jose Melano, badge 023054, on Interstate 580 East in Livermore. The operative pleading is the First Amended Complaint filed August 17, 2026 (Dkt. 5).

3. The Clerk issued summonses for both officers on August 10, 2026 (Dkt. 3). Meza-Gonzalez's summons is directed to the CHP Modesto Area duty station, 4030 Kiernan Avenue, Modesto, California 95356. Melano's summons is directed to CHP South Sacramento Area, 6 Massie Court, Sacramento, California 95823.

4. On August 13, 2026, I submitted a SER-001 request to the Stanislaus County Sheriff Civil Division asking that office to serve Meza-Gonzalez at the Modesto Area duty station, and a SER-001 request to the Sacramento County Sheriff asking that office to serve Melano at South Sacramento.

5. Melano was served on August 14, 2026. Process server Clifford Black, owner of C&P Process Server, delivered the summons to Officer Reed at 6 Massie Court. The AO 440 return states that Officer Reed is designated by law to accept service of process on behalf of the California Highway Patrol at that station. That return was filed August 17, 2026 as Dkt. 5-1. The clerk-stamped original was entered August 31, 2026 as Document 12 after this action was related to *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK, and reassigned to this Court as No. 4:26-cv-08271-ASK.

6. No Rule 4(l) return has been filed as to Meza-Gonzalez. The Stanislaus SER-001 did not produce a filed return. On August 25, 2026, I prepared a private process-server packet for the same Modesto Area duty station — issued summons, operative First Amended Complaint, notice identifying that complaint, and the Court's CMC/ADR order. Defendant has not been produced for personal service at that station. He has not made himself available there. The duty-station method that completed service on his partner has not completed service on him.

7. I have personal knowledge of the same pattern in the earlier Alameda Superior Court action, No. 26CV168913. The State of California / CHP and Melano were served in that case

on March 25, 2026. Meza-Gonzalez was not. I had to apply ex parte for an extension of time to serve him. The court extended the deadline to May 4, 2026.

8. Deputy Attorney General Haiyang A. Li has been the lawyer for these officers on this incident throughout. In the Eastern District action, No. 2:25-cv-01460-DC-CSK, he filed the December 10, 2025 motion to dismiss and the January 5, 2026 reply on behalf of the State, CHP, Meza-Gonzalez, and Melano. I served my April 21, 2026 Objections and July 7, 2026 Notice of Supplemental Authority on him. On April 9, 2026, I spoke with him by telephone about the Alameda demurrer; he agreed in principle to a stay of that case and said he would consult his clients, including these officers, on magistrate-judge consent in the Eastern District action.

9. In the Alameda action he circulated a draft stay stipulation on April 13, 2026, accepted my counter-draft on April 14, and caused the stipulation to be filed the same day. In June 2026 he opposed my U-visa certification motion in that case on behalf of the State, CHP, Meza-Gonzalez, and Melano.

10. In the related action before this Court, *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK, Li is counsel of record for Captain G. Serrato. He filed the August 26, 2026 motion to dismiss (Dkt. 18). I have served papers on him in that case at 300 South Spring Street, Suite 1702, Los Angeles, California 90013-1230, and at Haiyang.Li@doj.ca.gov.

11. Li has not appeared in this action. I have not been able to obtain a stipulation from him before filing this motion, because he is not counsel of record here while Meza-Gonzalez remains unserved. I am serving this motion on him concurrently at the Spring Street address and the email address above, and I request that he stipulate to accept service for Meza-Gonzalez. If he does, I will so advise the Court.

12. I am also serving this motion by first-class mail on Melano at the South Sacramento duty station where he was served, and I am sending a courtesy copy to Meza-Gonzalez at the Modesto Area duty station.

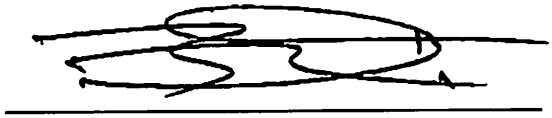
13. I am not asking the Court to disturb Melano's completed service. I am asking the Court to close the remaining Rule 4 gap by directing the lawyer who has represented Meza-Gonzalez on this incident to accept the papers.

14. True and correct copies of the caption pages of those filings are attached as Exhibit A (Eastern District motion to dismiss, December 10, 2025, naming Li as attorney for Meza-Gonzalez and Melano), Exhibit B (Alameda opposition to the U-visa certification motion, naming Li as attorney for the same defendants), and Exhibit C (Serrato motion to dismiss, August 26, 2026, naming Li as counsel of record for Captain Serrato).

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on September 1, 2026, at San Jose, California.

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA
NFORBI v. MEZA-GONZALEZ ET AL.
Case No. 4:26-cv-08271-ASK

EXHIBIT

A

Caption Page — Eastern District Motion to Dismiss

Newanforbi v. State of California / CHP et al.
E.D. Cal. No. 2:25-cv-01460-DC-CSK — filed December 10, 2025
Haiyang A. Li, attorney for Meza-Gonzalez and Melano

ROB BONTA, State Bar No. 202668
Attorney General of California
ELIZABETH S. ANGRES, State Bar No. 179523
Supervising Deputy Attorney General
HAIYANG A. LI, State Bar No. 288063
Deputy Attorney General
300 South Spring Street, Suite 1702
Los Angeles, CA 90013-1230
Telephone: (213) 269-6404
Fax: (916) 731-2120
E-mail: Haiyang.Li@doj.ca.gov
Attorneys for Defendants State of California, acting by and through the California Highway Patrol, Santiago Meza-Gonzalez and Jose Melano

IN THE UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **STATE OF CALIFORNIA; CALIFORNIA HIGHWAY PATROL; OFFICER SANTIAGO MEZA-GONALEZ (#023295); OFFICER MELANO (#023054),** Defendants.	Case No. 2:25-cv-01460-DC-CSK **DEFENDANTS' NOTICE OF MOTION AND MOTION TO DISMISS COMPLAINT WITH MOTION TO STRIKE; MEMORANDUM OF POINTS AND AUTHORITIES** Date: January 16, 2026 Time: 1:30 p.m. Courtroom: 10 Judge: District Judge Dena Coggins Trial Date: Not Set Action Filed: May 27, 2025

NOTICE IS HEREBY GIVEN that on January 16, 2026, at 1:30 p.m., in Courtroom 10 of the above-entitled Court, located at 501 "I" Street, Sacramento, California, Defendants State of California, Santiago Meza-Gonzalez and Jose Melano (collectively "Defendants") will and hereby do move this Court for an order dismissing Plaintiff's Complaint, with prejudice, on the following grounds:

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA
NFORBI v. MEZA-GONZALEZ ET AL.
Case No. 4:26-cv-08271-ASK

EXHIBIT

B

Caption Page — Alameda U-Visa Opposition

Newanforbi v. Meza-Gonzalez et al.
Alameda Super. Ct. No. 26CV168913 — June 2026
Haiyang A. Li, attorney for Meza-Gonzalez and Melano

ROB BONTA
Attorney General of California
ELIZABETH S. ANGRES
Supervising Deputy Attorney General
HAIYANG A. LI
Deputy Attorney General
State Bar No. 288063
300 South Spring Street, Suite 1702
Los Angeles, CA 90013-1230
Telephone: (213) 269-6404
Fax: (916) 731-2120
E-mail: Haiyang.Li@doj.ca.gov
Attorneys for Defendants State of California, acting by and through the California Highway Patrol, Santiago Meza-Gonzalez and Jose Melano

Exempt from Filing Fees Pursuant to Gov. Code Section 6103

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

OFFICER SANTIAGO MEZA-GONZALEZ #023295, INDIVIDUALLY; OFFICER JOSE MEANO #023054, INDIVIDUALLY; STATE OF CALIFORNIA; AND DOES 1-10, INCLUSIVE,

Defendants.

Case No. 26CV168913

DEFENDANTS' OPPOSITION TO PLAINTIFF'S MOTION FOR U-VISA CERTIFICATION

Date: June 18, 2026
Time: 2:30 p.m.
Dept: 518
Judge: The Honorable Mark Fickes
Trial Date: None Set
Action Filed: February 4, 2026

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA
NFORBI v. MEZA-GONZALEZ ET AL.
Case No. 4:26-cv-08271-ASK

EXHIBIT

C

Caption Page — Serrato Motion to Dismiss

Newanforbi v. Serrato
N.D. Cal. No. 4:26-cv-05953-ASK — filed August 26, 2026 (Dkt. 18)
Haiyang A. Li, counsel of record for Captain G. Serrato

`ROB BONTA
Attorney General of California
ELIZABETH S. ANGRES
Supervising Deputy Attorney General
HAIYANG A. LI
Deputy Attorney General
State Bar No. 288063
300 South Spring Street, Suite 1702
Los Angeles, CA 90013-1230
Telephone: (213) 269-6404
Fax: (916) 731-2120
E-mail: Haiyang.Li@doj.ca.gov
Attorneys for Defendant
Captain G. Serrato, in both his individual and official capacities

IN THE UNITED STATES DISTRICT COURT

FOR THE NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

CAPTAIN G. SERRATO in his individual and official capacities as Commander, Dublin Area, California Highway Patrol.

Defendants.

4:26-cv-05953-ASK

DEFENDANT CAPTAIN G. SERRATO'S NOTICE OF MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT AND/OR MOTION TO STRIKE PORTIONS OF THE FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES

Date: September 16, 2026
Time: 1:30 p.m.
Courtroom:
Judge: Magistrate Judge Honorable Ajay Krishnan.
Trial Date: None Set
Action Filed: July 21, 2026

NOTICE IS HEREBY GIVEN that on September 16, 2026, at 1:30 p.m., in the above-entitled Court, located at 1301 Clay Street, Oakland, California, Defendant Captain G. Serrato, in both his individual and official capacities ("Defendant") will and hereby does move this Court for an order dismissing Plaintiff's First Amended Complaint, with prejudice, and striking portions of the First Amended Complaint pursuant to Federal Rule of Civil Procedure

BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **SANTIAGO MEZA-GONZALEZ (CHP #023295); JOSE MELANO (CHP #023054); and DOES 1-10,** Defendants.	**Case No. 4:26-cv-08271-ASK** **[PROPOSED] ORDER GRANTING ADMINISTRATIVE MOTION — DAG LI TO ACCEPT SERVICE** Civil L.R. 7-11; Fed. R. Civ. P. 4(e)(1), 4(m); Cal. Code Civ. Proc. § 413.30 Judge: Hon. Ajay S. Krishnan Related: 4:26-cv-05953-ASK

Plaintiff has moved under Civil Local Rule 7-11, Federal Rule of Civil Procedure 4(e)(1) and 4(m), and California Code of Civil Procedure section 413.30 for an order directing Deputy Attorney General Haiyang A. Li to accept service of process on behalf of Defendant Santiago Meza-Gonzalez.

The Court has considered the motion, the supporting declaration, and the record. Defendant Jose Melano has been served. The AO 440 return filed as Dkt. 5-1 and entered as Document 12 establishes service on Melano at CHP South Sacramento on August 14, 2026. No Rule 4(l) return has been filed as to Meza-Gonzalez. The record further shows that Deputy Attorney General Li has represented Meza-Gonzalez and Melano in prior civil actions arising from the same November 1, 2024 incident, and that he is counsel of record for Captain G. Serrato in the related action before this Court, No. 4:26-cv-05953-ASK.

Delivery of the summons and operative complaint to the Deputy Attorney General who has represented this defendant throughout is a manner of service reasonably calculated to give actual notice. (Fed. R. Civ. P. 4(e)(1); Cal. Code Civ. Proc. § 413.30; *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950); *Rio Properties, Inc. v. Rio Int'l Interlink*, 284 F.3d 1007, 1016-17 (9th Cir. 2002).)

GOOD CAUSE APPEARING, IT IS ORDERED that:

1. Plaintiff's administrative motion is GRANTED.

2. Deputy Attorney General Haiyang A. Li is authorized and directed to accept service of process on behalf of Defendant Santiago Meza-Gonzalez in this action.

3. Plaintiff's delivery to Deputy Attorney General Li, by electronic mail at Haiyang.Li@doj.ca.gov and by first-class mail at 300 South Spring Street, Suite 1702, Los Angeles, California 90013-1230, of (a) the issued summons as to Meza-Gonzalez (Dkt. 3), (b) the operative First Amended Complaint (Dkt. 5), and (c) the Order Setting Initial Case Management Conference and ADR Deadlines (Dkt. 4), shall constitute completed service on Defendant Santiago Meza-Gonzalez under Federal Rule of Civil Procedure 4(e)(1) and California Code of Civil Procedure section 413.30 as of the date of the email transmission.

4. Plaintiff shall file a proof of that delivery under Federal Rule of Civil Procedure 4(l) within seven (7) days of the email transmission.

5. Completed service on Defendant Jose Melano is unaffected by this Order.

IT IS SO ORDERED.

Dated: _____, 2026

_____

HON. AJAY S. KRISHNAN

United States Magistrate Judge